

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Wall	Team: Squad #09	CCRB Case #: 202305238	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 05/28/2023 12:27 AM	Location of Incident: Inside § 87(2)(b)	18 Mo. SOL 11/28/2024	Precinct: 33
Date/Time CV Reported Sun, 05/28/2023 5:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/08/2023 12:20 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Carlos Arrecis	08552	963380	033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ariel Rosario-Bautista	23460	972223	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Carlos Arrecis	Abuse: Police Officer Carlos Arrecis entered § 87(2)(b) in Manhattan.	A . Substantiated
B . PO Carlos Arrecis	Force: Police Officer Carlos Arrecis hit § 87(2)(b) against a wall.	B . Substantiated

Case Summary

On May 28, 2023, § 87(2)(b) filed this complaint on her own behalf over the phone with IAB, generating original log § 87(2)(b). The CCRB received this complaint on June 8, 2023.

On May 28, 2023, at approximately 12:27 AM, Police Officer Carlos Arrecis of the 33rd Precinct, entered § 87(2)(b) in Manhattan, (**Allegation A: Abuse of Authority, substantiated**). He then grabbed § 87(2)(b) by the arm and hit her against a wall of cubbies inside the apartment (**Allegation B: Force, substantiated**).

§ 87(2)(b) was arrested in relation to this incident [01 Board Review].

The investigation received six body-worn camera (BWC) videos related to this incident [02 Board Review].

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Carlos Arrecis entered § 87(2)(b) in Manhattan.

It is undisputed that PO Arrecis and his partner, PO Ariel Rosario-Bautista, also of the 33rd Precinct, responded to § 87(2)(b) in Manhattan, after § 87(2)(b) 17-year-old daughter, § 87(2)(b) who lived at the address, complained that her mother had locked her out without giving her a key. § 87(2)(b) answered the door and PO Arrecis entered the apartment without her consent. PO Arrecis previously responded to § 87(2)(b) address regarding the same issue.

At 02:55 in PO Arrecis's BWC, after PO Arrecis knocks and rings the doorbell, § 87(2)(b) answers the door [04 Board Review]. § 87(2)(b) who stands beside PO Arrecis, immediately enters the apartment without any interference from § 87(2)(b). Between 03:00 and 03:56, PO Arrecis and § 87(2)(b) argue about why § 87(2)(b) has not yet given her daughter an apartment key and whether PO Arrecis knocked too loudly. At 03:57, § 87(2)(b) is inside her apartment in the doorway, holding the door open with her right hand. Without asking for permission, and while still arguing about § 87(2)(b) giving her daughter a key, PO Arrecis fully enters the apartment, and grabs hold of § 87(2)(b) right arm. He then states, "Listen to me, I can arrest you right now for endangering the welfare of a child." While inside, PO Arrecis continues to speak with § 87(2)(b) about providing her daughter with a key. At 04:18, PO Arrecis says, "you know what?" before grabbing § 87(2)(b) by the arm and brandishing his handcuffs.

§ 87(2)(b) statement is consistent with BWC [03 Board Review]. She noted that she never gave her consent for PO Arrecis to enter her apartment.

PO Arrecis testified that he did not observe any physical injuries to § 87(2)(b) and did not believe that she needed medical or mental health assistance [05 Board Review]. § 87(2)(b) did not express any fear of her mother or indicate that her relationship with her mother was dangerous. When § 87(2)(b) opened the door, she allowed § 87(2)(b) into her apartment immediately. She then told PO Arrecis that she would not give her daughter a key to the apartment. PO Arrecis believed that by not giving her daughter keys to the apartment, § 87(2)(b) was purposefully endangering the welfare of a child and determined that she was under arrest for that reason. PO Arrecis and § 87(2)(b) continued to speak for approximately 30 seconds before PO Arrecis entered § 87(2)(b) apartment to place her under arrest. PO Arrecis did not need consent to enter the home since he did so to place § 87(2)(b) under arrest. PO Arrecis's sole reason for the entry was to arrest § 87(2)(b). PO Arrecis believed that § 87(2)(b) welfare was in danger because her mother did not give her a key and because they lived in a neighborhood he knew as a "high crime area."

UF-61 § 87(2)(b) notes that § 87(2)(b) did not fear for her life or safety and was not the subject of escalating violence or abuse by § 87(2)(b) [01 Board Review].

According to New York State Penal Law (NYSPL) 260.10: Endangering Child Welfare, a

person is guilty of endangering the welfare of a child when, as a parent or guardian of a child under 18 years, they fail or refuse to exercise reasonable diligence in control of such a child to prevent that child from becoming an abused child, neglected child, juvenile delinquent, or person in need of supervision [06 Board Review]. According to Family Court Act Chapter 686, Article 10, Part 1, a “neglected child” is one under 18 years old whose physical, mental, or emotional condition has been impaired or is in imminent danger of becoming impaired as a result of failure of the parent to exercise a minimum degree of care in providing the child with adequate food, clothing, shelter, or education [07 Board Review].

According to Payton v. New York, 445 U.S. 573, absent exigent circumstances, a suspect’s interest in the sanctity of their own home outweighs competing governmental interests and mandates the prohibition of a warrantless arrest in the suspect’s home [08 Board Review].

According to People v. Riffas, 120 A.D. 3d 1438, officers can reach into an apartment using their arms to pull an arrestee over the apartment threshold and into the hallway to effect an arrest [09 Board Review]. Officers cannot walk over the threshold to do this, however.

According to People v. Doll, 21 N.Y. 3d 665, the emergency doctrine allows the police to conduct a warrantless residential entry if they reasonably believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property and this belief must be grounded in empirical facts [10 Board Review].

§ 87(2)(g)

§ 87(2)(b) BWC video also confirms that § 87(2)(b) did not grant PO Arrecis explicit or implicit consent to enter § 87(2)(b) home.

§ 87(2)(g)

it is recommended that Allegation A be closed as substantiated.

Allegation (B) Force: Police Officer Carlos Arrecis hit § 87(2)(b) against a wall.

At 04:00 in PO Arrecis’s BWC, § 87(2)(b) is standing still in front of PO Arrecis [04 Board Review]. She briefly gesticulates toward him with her right arm while asking why he touched her. PO Arrecis then says, “You know what, come here.” He immediately then § 87(2)(b) right arm with both hands. § 87(2)(b) does not move her arm or otherwise attempt to break PO Arrecis’s hold when he grabs it. PO Arrecis then swings § 87(2)(b) to his right and pushes her against a wall of cubbies on the wall to the left of the apartment’s main entrance. § 87(2)(b) audibly yelps when she hits the wall. PO Arrecis then handcuffs § 87(2)(b). The video shows the handcuffing process in its entirety; at no point does § 87(2)(b) attempt to flee from PO Arrecis or otherwise defeat his attempt to place her under arrest.

PO Arrecis’s statement is consistent with BWC video with the following exceptions [05 Board Review]. PO Arrecis did not instruct § 87(2)(b) to turn around or provide her hands because he did not want her to attempt to escape his custody. When PO Arrecis placed his hand on § 87(2)(b) to arrest her, she moved her hand upwards in a motion to break his hold on her. For this reason, PO Arrecis pushed her against the cubbies on the wall to ensure § 87(2)(b) and his own safety as he did not know the layout of § 87(2)(b) apartment or what she may have inside the apartment.

According to Patrol Guide Procedure 221-01: Force Guidelines, officers may use force when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody

[11 Board Review]. In determining whether the use of force is reasonable, members of service should consider the following, among other factors: A) the nature and severity of the crime/circumstances; B) actions taken by the subject; C) duration of the action; D) immediacy of the perceived threat or harm to the subject, members of service, or bystanders; E) whether the subject is actively resisting custody; F) whether the subject is attempting to evade arrest by flight; G) the number of subject compared to the number of members of service; and H) the size, age, and condition of the subject in comparison to the members of service. If force is unreasonable under the guidelines, it will be deemed excessive and in violation of Department policy.

Although PO Arrecis testified that he pushed § 87(2)(b) against the wall of cubbies because she resisted custody by moving her hand upward, BWC makes clear that this did not occur, and that § 87(2)(b) made no attempts to resist arrest. BWC also shows that § 87(2)(b) aged 46 at the time of this incident, is a visibly smaller female than PO Arrecis, a 30-year-old male. § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [12 Board Review].
- PO Arrecis has been a member of service for six years and has been a subject in five other CCRB complaints and 11 allegations, of which three were substantiated:
 - Case #202203882 involved substantiated allegations of a frisk, search, and discourteous language against PO Arrecis. The Board recommended Charges and the NYPD discipline is currently pending. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 22, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident [13 Board Review].

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 9

Investigator:	David Wall	Investigator David Wall	03/05/2024
	Signature	Print Title & Name	Date
Squad Leader:	Rachel Adler	SI Rachel Adler	03/11/2024
	Signature	Print Title & Name	Date

Reviewer:

Signature

Print Title & Name

Date